SIMPLISIO GANHA

v

B. HADZIRAMWI (N.O)

And

PETER GANHA TIVARINGIRE

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
MASVINGO 29 October 2025, 24 November 2025, 22 January 2026, 27 February 2026 & 17 August 2026

Civil trial for review

D. C. Kufaruwenga, for the plaintiff
C. Ndlovu, for the 2nd defendant

DUBE-BANDA J:

[1] The plaintiff approached this court by way of a court application for review alleging what he perceived as procedural irregularities in the process that resulted in the first defendant, the District Development Coordinator, recommending the second defendant, Peter Ganha Tivaringire, for appointment as Tarambiwa Village Head. The first defendant is the District Development Coordinator for Bikita District, in Masvingo Province. The second defendant, whose appointment is central to this matter, was on 17 November 2022, appointed Village Head of Tarambiwa Village, in the jurisdiction of Chief Mukanganwi, Bikita.

[2] In the notice of application, in compliance with r 62 (2) of the High Court Rules, 2021, the plaintiff sets out three grounds of review, which are the following:

i. The first defendant, who presided over the proceedings for the appointment of the Village Head of Tarambiwa, showed bias in favour of the second defendant and against the plaintiff.

ii. The first defendant failed to observe the *audi alteram partem* rule by refusing to take into account the evidence of the witnesses who testified on behalf of the plaintiff.

iii. The first respondent made an irrational decision by appointing the second defendant as the Village Head of Tarambiwa, when the second defendant left Tarambiwa Village to reside in Marovesa Village, forty-three years ago.

[3] On 23 January 2025, in case number HCH 1692/23, this court *per* MUSITHU J converted the application proceedings to action proceedings. The court made an order couched in the following terms:

a) The application for review under HC 86/25 is and is hereby referred to trial on the following terms:
   i. The notice of application and the founding affidavit shall stand as the summons and declaration.
   ii. The notice of opposition and the opposing affidavit shall stand as the plea.
   iii. The answering affidavit shall stand as the replication.
b) The matter is hereby referred to trial on the following issues:
   i. Whether or not the first respondent exhibited bias in conducting proceedings for the recommendation of the appointment of the Tarambiwa Village Head?
   ii. Whether the second respondent's recommendation as Tarambiwa Village Head is lawful?
   iii. Whether or not the High Court, on its own, can recommend the applicant for appointment as the Tarambiwa Village Head?
   iv. The registrar is hereby directed to set down the matter under HC 86/25 on the continuous roll for trial.

[4] At a case management meeting, held before the commencement of trial, I directed, with the consent of the parties, that the trial shall be managed in terms of the joint pre-trial conference minute filed on 1 April 2025. For completeness, the *onus* on issues (i) and (iii) is on the

plaintiff, and on issue (ii) the *onus* is on the second defendant. I directed that the duty to begin was on the plaintiff.

[5] In the founding affidavit, now declaration, the plaintiff contends that Tarambiwa Village comprises five households, which are Chiseko Maritinos Ganha; Buchirai Budi Tarambiwa; Everisto Saini Ganha; Innocent Tetepai Ganha; and Tivaringire Peter Ganha, the second defendant. He contends that he is the second son in the household of Everisto Saini Ganha, which household is number three according to the chronology of birth. The second defendant's household is number five. It is pleaded that the five sons of the founder of the village agreed to take turns in the position of the Village Head for the village, in accordance with the chronology of their ages, starting with the eldest cascading to the youngest. It is pleaded that, in fulfilment of the terms of the agreement, Chiseko Maritinos Ganha became village head, and after his death, the next in line, Buchirai Budi Tarambiwa, became the village head. After the death of Buchirai Budi Tarambiwa, the next in line was Everisto Saini Ganha; however, he died before he ascended to the village throne. It is contended that due to the death of Everisto Saini Ganha, and to give effect to the agreement, his eldest son ought to be the village head; however, he has passed the baton to his younger brother, the plaintiff.

[6] It is pleaded that the second defendant, in connivance with the first defendant, has wrestled the village head position from the plaintiff. It is stated that the first defendant called a meeting to resolve the issue of who was to ascend to the seat of the village head. The plaintiff and the other three houses tried to explain the succession plan, but the first respondent refused to listen and listened to the second defendant. It is pleaded that the decision to recommend the second defendant was made without the benefit of the version of the plaintiff and his witnesses. It is stated that the minutes of the meeting were doctored. It is said the first respondent was biased in favour of the second defendant and against the plaintiff. It is pleaded that the second defendant is disqualified from being village head because in 1980 he relocated to Marevesa Village. It is contended that a village head cannot lead a village when he is permanently resident in another village. It is said the decision to recommend the second defendant is irrational and ought to be set aside.

[7] The second defendant, in his opposing affidavit, now the plea, pleaded that the family tree produced by the plaintiff is not authentic. It is contended that the succession is at what is called *Nhaka* stage, which is the inheritance stage, which means that all the surviving sons of the founder of the village should ascend to the village heads throne first, before the village headship cascades to the next generation. The second defendant is the only surviving son of Tarambiwa, the founder of the village. It is averred that Everisto Sam Ganha died before Buchirai Budi Tarambiwa was appointed village head and Innocent Tetepai Ganha also died after the death of Buchirai Budi Tarambiwa. In addition, it is pleaded that the plaintiff is not the eldest son of Everisto Saini Ganha, and is not eligible, at this moment, to ascend to the village throne. It is contended that in any event, the plaintiff is in the second generation, which is the *Dzinza* Stage, which will take over after the death of the second defendant, starting with the eldest household. It is disputed that the second defendant relocated to another village, and it is contended that even if he did, that will not take away his birthright. It is said at the meeting, the second defendant listened and considered the views of everyone, including the chief and the headman. It is disputed that the minutes were doctored and that the first defendant exhibited bias in favour of the second defendant. It was sought that the matter be dismissed with costs.

[8] In his answering affidavit, now replication, the plaintiff insists that the family tree he produced is authentic, in that it shows the descendants of Tarambiwa and the five households they represent and the order of their eligibility to the village headship. He admits that the second defendant is the only surviving son of Tarambiwa; however, it is denied that he is entitled to ascend to the position of village head. It is pleaded that the custom and tradition of Tarambiwa is that each household gets an opportunity to head the village in accordance with the chronology of the ages of the five sons who headed each household. It is stressed that the second defendant belongs to the fifth and last household. Now is the turn of the third household, where the plaintiff belongs.

[9] I now turn to the issues for trial as delineated in the order in HCH 1692/23 and bearing in mind the seat of the *onus* in respect of the issues for determination.

Whether or not the first defendant exhibited bias in conducting proceedings for the recommendation of the appointment of the Tarambiwa Village Head?

[10] The law requires that a decision maker who makes a decision must be reasonably perceived to be impartial. This is known as the "rule against bias," which traditionally formed part of the common law rules of natural justice, together with the *audi alteram partem* rule (hear the other side). In *S* v *Le Grange* 2009(2) SA 434 (SCA), it was stated that "…. in common usage bias describes 'a leaning inclination, bent or predisposition towards one side or another or a particular result". In this case, the plaintiff is pleading actual bias as against the first defendant. For one to succeed on the contention of actual bias, they must prove that the decision maker approached the matter with a mind which was prejudiced or not open to persuasion. See: *BTR Industries SA (Pty) Ltd* v *Metal and Allied Workers Union* 1992 (3) SA 673 (A) at 690. The decision maker must have closed his or her mind to the issues raised by the aggrieved party and merely accepted the version of one party. The test for the rule against bias is that justice must not only be done, but it must also be seen to be done. The test is an objective one. A decision will be declared invalid where it is found that the decision maker has an interest in the matter, be it a material, pecuniary or other interest resulting in bias. See: *Minnaar* v *Oberholzer Liquor Licencing Board* 1955 (2) SA 607 (T).

[11] It is important to put into context the basis on which the allegation of bias is predicated. The plaintiff contends that the second defendant clandestinely met the first defendant and asked him to convene a meeting to determine the candidate to be recommended for appointment as the village head. This complaint has no basis because any interested party had a right to request the first defendant to convene the meeting. The second defendant, as an interested party, had a right to request the convening of the meeting, and the first defendant had a duty to accede to such a request. Therefore, the fact that it is the second defendant who requested the convening of the meeting is of no moment. In any event, the meeting was held on 11 May 2022, and the plaintiff attended the meeting and did not raise the point that he took issue with the fact that it was the second defendant who requested the meeting. The plaintiff is taking issue at this stage because he is aggrieved by the outcome of the meeting. The fact that the first defendant convened the meeting at the request of the second defendant is not evidence of bias.

[12] The other contention is that during the meeting, the first defendant imposed his views that it was the second defendant who was eligible to be the next village head, because the succession tradition was still at the *Nhaka* stage. The evidence shows that all the households of the five children of the founder of the village were represented at the meeting. The first defendant enquired from the representatives of the households whether the village headship was at the *Nhaka* stage, or it was at the *Dzinza* Stage, where the grandchildren inherit the position of village head. In his evidence, the plaintiff said the first defendant was informed that the position of village head was at the *Nhaka* stage, and it was the turn of the third born, who was Everisto Saini Ganha, who, however, had died. But he had children who could assume the village throne. His evidence is that the first defendant then requested the second defendant to proceed and process his papers; the others, who did not agree that the first defendant was the one who was eligible, assumed that the second defendant was taking sides. The evidence shows that the plaintiff and his witnesses explained their position to the first defendant, and he, however, did not agree with their position. A closer examination of the evidence is that the plaintiff is merely aggrieved by the fact that the first respondent did not agree that he is the rightful candidate to be recommended for appointment to the position of village head. The fact that the first defendant recommended the second defendant is not symptomatic of bias. He had to make a decision, which was bound to aggrieve one and please the other. An adverse decision does not mean the decision maker is biased. In addition, the contention that the first defendant was 'fighting in the second defendant's corner' is not supported by evidence.

[13] The plaintiff submitted that the first defendant doctored the minutes to reflect that the household of Buchirai Budi Tarambiwa supported the nomination of the second defendant, when the representative of this household, one Tadius Ganha, opposed his nomination. The argument is that the minutes were doctored so that it would appear that the majority recommended the second defendant. This is a loud and bold submission which is not supported by the evidence. On the facts of this case, I take the view that the word 'doctored' is rather too strong, it might have been just an error, caused by a failure to pay attention to detail. In fact, the plaintiff conceded under cross-examination that the minutes are correct, except for the issue of the position taken by the household of Buchirai Budi Tarambiwa. The minutes show that the

household of the plaintiff argued that it was their turn because their father died before he assumed the throne. Therefore, to say the other households were not heard is incorrect. In addition, the legal practitioners for the plaintiff requested the minutes of the meeting, and they were made available. Even if there was a delay in producing the minutes, that cannot be ascribed to bias.

[14] I take into consideration that the plaintiff did not seek the withdrawal of the second defendant from presiding over the meeting. He was content to go along with the meeting, and only changed course to allege bias after the second defendant made a decision that aggrieved him and those who supported his cause. The argument that the first defendant ignored a valid point that was taken at the meeting, that recommending the second defendant would be irrational because he was not resident at Tarambiwa Village, but a different village called Mavesera, is not supported by the evidence. Mr *Kufaruwenga*, counsel for the plaintiff, argued that irrationality entitles the court to set aside a decision on review. I agree that as a general rule, a court on review may set aside a decision on the grounds of irrationality. However, each case must be considered on its own facts.

[15] It is trite that rationality review includes the common law grounds of ulterior purpose; failure to apply one's mind to the matter and arbitrariness. Rationality is a necessary element of lawful conduct by a decision maker; it serves to avoid capricious or arbitrary conduct. It includes the rationality connection test, in that it ensures that the decision is rationally related to the purpose for which the power was given. A decision to pass the test of rationality must bear a rational connection to the facts and the information available to the decision maker on which he or she purports to base such decision. See: *SA Predators Breeders Association* v *Minister of Environment, Affairs and Tourism* [2011] 2 All SA 529 (SCA) para 28. In *casu*, the first defendant considered the argument that the defendant resides at a different village and held that a birthright does not cease to exist because one has changed the place of residence. He can lead the village from his residence outside the village. He accepted, though, that it is encouraged that a village head must stay at the village he heads, but did not consider this fatal to second defendant's case. There is a rational connection between the reasons and the

decision. Therefore, the contention that the decision is irrational has no merit and stands to be rejected.

[16] What is conspicuously absent in the evidence is any objectively established fact, such as a personal interest, an extraneous association, an explicit expression of partiality, or a pattern of structural, one-sided intervention, that would cause a reasonable, well-informed observer to conclude that the first defendant had not brought an impartial mind to bear on the merits of the matter. In the circumstances, it cannot be said that the decision to recommend the appointment of the second defendant is so outrageous in its defiance of logic or accepted moral standards that no sensible person who had applied his mind to the question to be decided could not have arrived at it. The plaintiff has not discharged the *onus* of proving that the first defendant was biased in favour of the second defendant.

Whether the second respondent's recommendation as Tarambiwa Village Head is lawful?

[17] The question to be resolved is whether, in the selection process, the first defendant sought to ascertain the customs and traditions of the Tarambiwa community, and based on that, recommended a suitable person to be appointed the village head. See s 11(5) of the Traditional Leaders Act [*Chapter 29:17*]. Customary law is the traditional practice of the community's past and present. If past practice is proved, it must be accepted as the community's customary law. There are only two ways of deviating from the community's past practice, that is, if there is proof that a new community practice has superseded the past practice, in which case the new practice is the applicable customary law, and when past practice is developed to align customary law with constitutional values. In this case, the court must ascertain the content of the customary rules of succession to the Tarambiwa village head throne.

[18] The evidence shows that the founder of the village had five male children, and that the practice is that only male children are eligible to take the position of village head. In addition, the evidence shows that the Tarambiwa royal house comprises five households, which are Chiseko Maritinos Ganha; Buchirai Budi Tarambiwa; Everisto Saini Ganha; Innocent Tetepai Ganha; and Tivaringire Peter Ganha, the second defendant. After the death of the founder of

the village, Chiseko Maritinos Ganha became the village head, and after his death, his young brother Buchirai Budi Tarambiwa became the village head. The two elder brothers had assumed the position of village head.

[19] This dispute has arisen because the third elder brother, Everisto Saini Ganha, died before he became village head. The second defendant is the youngest, and only surviving son of the founder of the village. The plaintiff contends that the five sons of the founder agreed to take turns in the position of the Village Head for the village, in accordance with the chronology of their ages, starting with the eldest to the youngest. It is contended that due to the death of Everisto Saini Ganha, and to give effect to the agreement, his eldest son ought to be the village head. It is stated that the eldest son has allowed the baton to pass to his young brother, the plaintiff. *Per contra,* the second defendant disputes the existence of such an agreement, and argues that the succession is at *Nhaka* stage, and since he is the only serving son of the founder, and at this moment the only one eligible to the throne.

[20] In his submission, Mr *Ndlovu*, counsel for the second defendant, argued that the evidence of the existence of the meeting and the agreement is inadmissible hearsay. I need to point out that during the trial, Mr *Ndlovu* did not object to the admissibility of this evidence on the basis that it was hearsay. It is trite that, as a general rule, the court must take control and management of the trial and ensure that only admissible evidence is received and placed before it. However, in a civil trial, the court must be slow to *mero motu* raise the issue of admissibility of evidence, particularly where there is a basis on which such evidence may be admissible. In this instance, this evidence is admissible as first-hand hearsay in terms of s 27 of the Civil Evidence Act [*Chapter 8:01*]. See *Hiltumen* v *Hiltumen* 2008 (2) ZLR 296(H); *Church of the Province of Central Africa* v *Jakaza & Ors* (1) 2010 (1) ZLR 246b(H). The question is what weight the court should attach to such evidence.

[21] In any event, I take the view that it is inappropriate for counsel to sit and not object to the admissibility of what he or she considers inadmissible evidence, only to raise the issue at the closing submissions stage. The issue of admissibility must be raised and resolved at the moment such evidence is sought to be adduced. This is so because the party presenting such evidence

must know at that stage whether the evidence is admissible or not, so that, if need be, it can reflect, change trial strategy or call other evidence on the issue. It is for these reasons that I disapprove of the procedure taken by Mr *Ndlovu* in this matter.

[22] As stated above, the evidence of the alleged 1980 meeting and the agreement is admissible hearsay evidence; it remains a question of weight. The agreement is alleged to have been sealed in 1980, and at that time the plaintiff and his witnesses were minors or not yet born. They neither attended the alleged meeting, nor are there any minutes of such meeting. This puts the truthfulness of the meeting and the existence of the agreement in serious doubt. In addition, the version of the plaintiff must be juxtaposed with the version of the second defendant, who disputes this alleged meeting and the existence of the agreement. The second defendant was, in 1980, an adult, and he interacted with his brothers, the now deceased sons of the founder of the village. There is a basis for the acceptance of the version of the second defendant. On the facts of this case, no weight can be ascribed to the hearsay evidence on which the plaintiff's version is predicated. Therefore, I find that there is no acceptable evidence that the five sons of the founder of the village attended a meeting and made an agreement as alleged by the plaintiff. The acceptable evidence shows that the traditional practice, past and present, is that the throne must devolve to the surviving sons of the founder, according to their ages, after all the sons have died, the village headship can then cascade down to the third generation, that is the grandchildren of the founder.

[23] In any event, it seems that all the parties agree that the position of village head is now at the *Nhaka* stage. My understanding is that at this stage, only the sons of the founder are eligible to assume the position of village head. The plaintiff is not a son of the founder; he is a grandson. He falls into the *Dzinza* stage, wherein the third generation becomes eligible to be village head. The plaintiff's contention that he be permitted to sidestep the only surviving son of the founder is untenable. It has no foundation in the customary law of succession to the village throne in the Tarambiwa village.

[24] I have already dealt with the plaintiff's argument that it is irrational to have the second defendant as village head because he resides in a different village. Note must be taken of the

fact that the customary throne is hereditary, meaning an heir is born into the position rather than elected. The second defendant's claim is based on his birthright, it cannot be taken away from him because he has chosen to stay in a different village from the one he seeks to head.

[25] I take the view that the evidence and the facts of this matter show that in accordance with customary law, the second defendant is the rightful person to be appointed Tarambiwa Village Head. In the circumstances, the second defendant has discharged the *onus* of proving that his recommendation as Tarambiwa Village Head was lawful**.**

Whether or not the High Court on its own can recommend the plaintiff for appointment as the Tarambiwa Village Head?

[26] The above conclusions that the plaintiff has not discharged the *onus* of proving that the first defendant was biased in favour of the second defendant, and that the second defendant has discharged the *onus* of proving that his recommendation as Tarambiwa Village Head is lawful**,** **resolve** this matter. However, for the purposes of completeness, I will address the question whether this court on its own can recommend the appointment of the plaintiff to the position of village head.

[27] The starting point is that this is a review action. It is trite that in a review matter the purpose of the remedy is to set aside or correct the proceedings or the decision. It is in this regard that s 28 of the High Court Act [*Chapter7:06*] provides for the powers that the court has on review; it says:

> "On a review of any proceedings or decision other than criminal proceedings, the High Court may, subject to any other law set aside or correct the proceedings or decision."

[28] It is in this context that in *Police Service Commission & Anor* v *Manyoni* SC72-22 the court said:

> "It is trite, and this appears clearly from the above cited provisions, that in an application for review the court must confine itself to establishing whether or not the proceedings were afflicted with irregularities.

> Once it found, as it did in this case, that there were irregularities in the process in which the appellants discharged the respondent, then its power should have been exercised in terms of s 27 of the High Court Act.
>
> As set out above, s 28 provides that the High Court can only set aside or correct the proceedings or decision complained of. The High Court has no power to order the re instatement of a person if a matter is brought on review."

[29] In a review matter, the court has no power to set aside and then substitute the decision of the decision maker with its own decision. It is important that those who approach the court on review, whether by application or action, must appreciate the distinction between the relief that is available on review and that which is available on appeal. Therefore, even if I had found that the first defendant was biased and that the recommendation was not lawful, I would still have declined to recommend the plaintiff for the appointment to the position of village head. Because to do so would be *ultra vires* the powers of this court on review. This is so because the court was not called to answer the question whether the plaintiff was the rightful heir to the village head throne. The questions for resolution were clear, that is, whether there was bias and whether the recommendation of the second defendant was lawful. There was no issue of whether the plaintiff was the rightful heir to the throne. In the circumstances, there would not have been a basis at law to recommend the plaintiff for appointment to the position of village head.

[30] It is for the above reasons that the plaintiff's case stands to be dismissed. The question of costs remains to be considered. No good grounds exist for a departure from the general rule that costs follow the cause. The second defendant is clearly entitled to his costs on a party and party scale.

In the result, it is ordered as follows:

The plaintiff's case be and is hereby dismissed with costs.

Kufaruwenga, Kajevu & Zihanzu, plaintiff's legal practitioners
Ndlovu & Hwacha, second defendant's legal practitioners